

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
NATHANIEL BOSTIC,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE KYLE
BROWN, Tax No. 957405, DETECTIVE STEPHEN
BAROUNIS, Tax No. 956414, DETECTIVE MAX
ROLFFOT, Tax No. 949566, and DETECTIVE JAVIER
MUNOZ, Tax No. 935373,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
September 4, 2023

Yours, etc.


JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007,
DETECTIVE KYLE BROWN, Tax No. 957405, Narcotics Borough Brooklyn South
DETECTIVE STEPHEN BAROUNIS, Tax No. 956414, Warrants Section
DETECTIVE MAX ROLFFOT, Tax No. 949566, Detective Borough Hate Crimes Task
Force
DETECTIVE JAVIER MUNOZ, Tax No. 935373, Executive Protection Unit

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- x

NATHANIEL BOSTIC,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE KYLE
BROWN, Tax No. 957405, DETECTIVE STEPHEN
BAROUNIS, Tax No. 956414, DETECTIVE MAX
ROLFFOT, Tax No. 949566, and DETECTIVE JAVIER
MUNOZ, Tax No. 935373,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff NATHANIEL BOSTIC, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that allegedly occurred on or about August 10, 2020, at which time two unidentified individuals entered a commercial vehicle and removed \$4,000 and two checks valued at \$1,300, without authorization to enter the vehicle or remove the money. An investigation into the incident was commenced by the NYPD and the individually named police officer defendants claim that, through video footage they were able to identify plaintiff's vehicle as the vehicle the perpetrators of the crime entered after the crime was committed. However, the video footage was not very clear, and the identities of the perpetrators could not be determined because the video was not clear and because the perpetrators were wearing face masks. Defendants understood that they lacked probable cause to arrest plaintiff because they did not possess any objective evidence to establish that plaintiff was one of the two individuals that entered the vehicle. The defendant officers issued an NYPD "I-Card" which named plaintiff as suspect but gave specific instructions not to arrest plaintiff because the defendants did not possess probable cause to arrest him. However, the "I-Card" gave officers authority to seize plaintiff's vehicle as evidence in a criminal investigation. On August 27, 2020, police officers from the 90th Precinct stopped plaintiff while he was driving his vehicle, seized plaintiff's vehicle, and the officers did not arrest plaintiff because they did not possess probable cause to

arrest him. On September 3, 2020, plaintiff was contacted via telephone by defendants and plaintiff agreed to come to the 70th Precinct the following day to speak with defendants. On September 4, 2020, at approximately 1:00 pm plaintiff arrived at the 70th precinct stationhouse located at 154 Lawrence Avenue, Brooklyn, New York 11230 and immediately upon arriving at the 70th Precinct, defendants unlawfully handcuffed and falsely arrested plaintiff, without probable cause or legal justification. Defendants unlawfully searched, fingerprinted, photographed, interrogated, and detained plaintiff in a filthy holding cell at the 70th Precinct. The defendants also provided the District Attorney's Office with false, misleading, and incomplete evidence to support his purported basis for arresting plaintiff and charging him with crimes. Plaintiff was transported to Kings County Central Booking where the unlawful detention continued until 9/5/2020 when he was arraigned in Kings County Criminal Court and was charged with crimes he did not commit and that the officers had absolutely no factual basis to accuse him of committing, including the crimes of criminal possession of stolen property, grand larceny, and petit larceny. Plaintiff was maliciously prosecuted without probable cause, based upon the false, misleading, and incomplete allegations made against him by the Detective to the DA's Office. Plaintiff was released from custody on his own recognizance at arraignment. Plaintiff was required to appear in Kings County Criminal Court on several occasions before all charges were dismissed and sealed in their entirety on November 24, 2021, when the judge granted the DA's Office's affirmative motion to dismiss the charges in their entirety. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, illegally seized, maliciously prosecuted, and denied plaintiff the right to due process/ the right to a fair trial, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff NATHANIEL BOSTIC is a resident of the state of New York.
3. Defendant DETECTIVE KYLE BROWN, Tax No. 957405, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE KYLE BROWN, Tax No. 957405, is and was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the Narcotics Bureau Brooklyn South Unit.
5. Defendant DETECTIVE KYLE BROWN, Tax No. 957405, is being sued in his individual and official capacity.
6. Defendant DETECTIVE STEPHEN BAROUNIS, Tax No. 956414, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant DETECTIVE STEPHEN BAROUNIS, Tax No. 956414, was at all times relevant herein, assigned to the Warrants Section.

8. Defendant DETECTIVE STEPHEN BAROUNIS, Tax No. 956414, is being sued in his individual and official capacity.

9. Defendant DETECTIVE MAX ROLFFOT, Tax No. 949566, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE MAX ROLFFOT, Tax No. 949566, is and was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the Detective Borough Hate Crimes Task Force

11. Defendant DETECTIVE MAX ROLFFOT, Tax No. 949566, is being sued in his individual and official capacity.

12. Defendant DETECTIVE JAVIER MUNOZ, Tax No. 935373, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE JAVIER MUNOZ, Tax No. 935373, was at all times relevant herein, assigned to the Detective Bureau Financial Crimes Task Force and is presently assigned to the Executive Protection Unit.

14. Defendant DETECTIVE JAVIER MUNOZ, Tax No. 935373, is being sued in his individual and official capacity.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK and also attended a 50-h Hearing on July 11, 2022, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. By way of background, the claims arise from an incident that allegedly occurred on or about August 10, 2020, at which time two unidentified individuals entered a commercial vehicle and removed \$4,000 and two checks valued at \$1,300, without authorization to enter the vehicle or remove the money.

22. An investigation into the incident was commenced by the NYPD and the individually named police officer defendants were assigned to investigate the matter.

23. The defendants claim that, through video footage, they were able to identify plaintiff's vehicle as the vehicle the perpetrators of the crime entered after the crime was committed.

24. The video footage viewed by defendants was not clear enough to identify the perpetrators of the crime or to verify that either of the perpetrators was, in fact, a particular individual.

25. Neither the crime victim, nor any of the witnesses to the crime were able to identify the perpetrators of the crime.

26. Additionally, the perpetrators of the crime could not be determined because the perpetrators were wearing face masks in the video.

27. Defendants understood that they lacked probable cause to arrest plaintiff because they did not possess any objective evidence to establish that plaintiff was one of the two individuals that entered the vehicle.

28. On August 25, 2020, the defendant officers issued an NYPD "I-Card" which named plaintiff as suspect but gave specific instructions not to arrest plaintiff because the defendants did not possess probable cause to arrest him.

29. However, the "I-Card" gave officers authority to seize plaintiff's vehicle as evidence in a criminal investigation.

30. On August 27, 2020, police officers from the 90th Precinct stopped plaintiff while he was driving his vehicle, seized plaintiff's vehicle, and the officers did not arrest plaintiff because they did not possess probable cause to arrest him.

31. On September 3, 2020, plaintiff was contacted via telephone by defendants, and they asked plaintiff to come to the 70th precinct to speak with them.

32. Plaintiff agreed to meet the defendants at the 70th Precinct the following day because he knew he did nothing wrong, did not commit a crime, and did not violate the law in any way.

33. On September 4, 2020, at approximately 1:00 pm plaintiff arrived at the 70th precinct stationhouse located at 154 Lawrence Avenue, Brooklyn, New York 11230, and immediately upon arriving at the 70th Precinct, defendants unlawfully handcuffed and falsely arrested plaintiff, without probable cause or legal justification.

34. Upon information and belief, the defendants had a surveillance video of the crime they were investigating being committed.

35. Upon meeting plaintiff, the defendants realized that the individual in the video was not plaintiff, and the person did not even have the same body type as plaintiff.

36. . The defendants unlawfully interrogated plaintiff about where he was on the date the crime was committed and they questioned plaintiff about everyone who drove plaintiff's vehicle within the month leading up to plaintiff's arrest.

37. At no time relevant herein was plaintiff placed in a line up or chosen from a photo array or identified as the perpetrator of the crime.

38. The defendants acknowledged to plaintiff that they could see that the man in the video who was stealing money from the truck was not plaintiff, but the defendant's told plaintiff that if he did not answer their questions about who else drove plaintiff's vehicle then they would charge plaintiff with the crime and would claim that plaintiff was the man seen in the video.

39. Plaintiff could not answer the defendants' question; therefore, the defendants processed the unlawful arrest of plaintiff and charged him with committing crimes he did not commit and that the defendants lacked probable cause to accuse him of committing.

40. Defendants unlawfully searched, fingerprinted, photographed, interrogated, and detained plaintiff in a filthy holding cell at the 70th Precinct.

41. The defendants also provided the District Attorney's Office with false, misleading, and incomplete evidence to support his purported basis for arresting plaintiff and charging him with crimes.

42. Plaintiff was transported to Kings County Central Booking where the unlawful detention continued until September 5, 2020, when he was arraigned in Kings County Criminal Court and was charged with crimes he did not commit and that the officers had absolutely no factual basis to accuse him of committing, including the crimes of Criminal Possession of Stolen Property, Grand Larceny, and Petit Larceny.

43. Plaintiff was maliciously prosecuted without probable cause, based upon the false, misleading, and incomplete allegations made against him by the defendants to the District Attorney's Office.

44. Plaintiff was released from custody on his own recognizance at arraignment September 5, 2020.

45. Plaintiff was required to appear in Kings County Criminal Court on numerous occasions before all charges were dismissed and sealed in their entirety on November 24, 2021, when the judge granted the District Attorney's Office's affirmative motion to dismiss the charges in their entirety.

46. The criminal prosecution terminated in plaintiff's favor.

47. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

48. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, illegally seized, maliciously prosecuted, and denied plaintiff the right to due process/ the right to a fair trial, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

49. At no time relevant herein did defendants possess an objective basis to reasonably believe plaintiff committed a crime or violated the law in any way and they lacked probable cause to arrest plaintiff.

50. At no time relevant herein did plaintiff commit a crime or violate the law in any way.

51. At no time relevant herein did defendants possess objective facts that would establish probable cause to arrest or prosecute plaintiff.

52. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned,

falsely arrested, illegally seized, maliciously prosecuted, denied the right to due process/ the right to a fair trial, assaulted, battered and subjected to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

53. The unlawful stop, questioning, frisk, search, false imprisonment, false arrest, illegal seizure, malicious prosecution, and denial of the right to due process/ the right to a fair trial to plaintiff by the individually named defendants caused plaintiff to sustain physical, economic, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's First, Fourth Amendment, and Fourteenth Amendment Rights

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The individually named police officer defendants while acting in concert and within the scope of their authority unlawfully stopped, questioned, frisked, searched plaintiff, caused plaintiff to be unlawfully searched, seized, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of the right to due process pursuant to the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty pursuant to the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

63. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. Defendants lacked probable cause to search plaintiff.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

75. Defendants commenced and continued a criminal proceeding against plaintiff.

76. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

77. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

78. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

79. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 82 with the same force and effect as if fully set forth herein.

84. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

85. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

86. Defendants signed a false and misleading Summons and forwarded it to prosecutors in the Kings County District Attorney's Office.

87. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

88. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Failure to Intervene

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

101. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

103. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff NATHANIEL BOSTIC demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs, and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 4, 2023

By: _____



DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 4, 2023



DAVID M. HAZAN